

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

COSCO SHIPPING LINES CO. LTD.

Respondent and Third-Party Complainant,

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG SDS GLOBAL SCL ASIA
PACIFIC PTE LTD, AND SAMSUNG ELECTRONICS LOGITECH COMPANY, LIMITED

Third-Party Respondents.

DECLARATION OF JAMES H. HOHENSTEIN

James H. Hohenstein, hereby declares under penalty of perjury pursuant to 28 U.S.C. § 1746 as follows:

1. I am a partner in the law firm Hohenstein & Parkinson, LLP. Our firm represents Third-Party Respondents Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. ("SEC"), Samsung SDS Asia Pacific Pte Ltd. s/h/a Samsung SDS Global SCL Asia Pacific Pte Ltd ("SDS"), and Samsung Electronics Logitech Co., Ltd. s/h/a Samsung Electronics Logitech Company, Limited ("Logitech")(SEC, SDS and Logitech collectively "Third-Party Respondents"

or “Samsung Respondents”) in the above-referenced matter. In that regard, by way of my Notice of Special Appearance (Doc. 42), I have appeared in this matter for the limited purpose of contesting the Commission’s jurisdiction over the Samsung Respondents and the Third-Party Complaint as well as challenging the sufficiency of service of the Third-Party Complaint.

2. The statements made in this declaration are based on personal knowledge as well as my personal research of publicly available resources.

3. Attached as Exhibit A is a true and correct copy of the Secretary’s letter, dated May 14, 2025, addressed to Logitech. I am advised that the letter, with its enclosures, was received by Logitech on May 16, 2025, and that the enclosures to the letter included the Third-Party Complaint (Doc. 31) and the Secretary’s Notice of Filing of Third-Party Complaint (Doc. 33). I am further advised that the enclosures to the letter did not include a version of the Third-Party Complaint translated into the Korean language.

4. Attached as Exhibit B is a true and correct copy of the Secretary’s letter, dated May 14, 2025, addressed to SDS. I am advised that the letter, with its enclosures, was received by SDS on May 21, 2025, and that the enclosures to the letter included the Third-Party Complaint (Doc. 31) and the Secretary’s Notice of Filing of Third-Party Complaint (Doc. 33).

5. Attached as Exhibit C is a true and correct copy of the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15, 1965 (“Hague Convention”), which may be found at <https://www.hcch.net/en/instruments/conventions/full-text/?cid=17>. I last accessed this document on May 29, 2025.¹

¹ The website reference “hcch” refers to the Hague Conference on Private International Law (“HCCH”). The purpose of this intergovernmental organization is to promote the unification of the rules of private international law. HCCH has 92 members: 91 states and the European Union, including the United States

6. Attached as Exhibit D is a true and correct copy of a press release encaptioned “Singapore Accedes to the Service Convention” issued by the Singapore Ministry of Law, which is dated May 17, 2023. The press release notes that Singapore acceded to the Hague Convention on May 16, 2023, and that the Convention would enter into force in Singapore on December 1, 2023. The press release may be found at <https://www.mlaw.gov.sg/news/press-releases/singapore-accedes-to-service-convention>. I last accessed this document on May 29, 2025.

7. Attached as Exhibit E is a true and correct copy of a press release encaptioned “Singapore accedes to the Service Convention” issued by HCCH, which is dated May 16, 2023. The press release notes that Singapore acceded to the Hague Convention on May 16, 2023, and that the Convention would enter into force in Singapore on December 1, 2023. The press release may be found at <https://www.hcch.net/en/news-archive/details/?varevent=917>. I last accessed this document on May 29, 2025.

8. Attached as Exhibit F is a true and correct copy of the official Declaration/Reservation/Notification of Korea in which Korea objects to service of documents by postal channels directly to persons within its territory. The document may be found at <https://www.hcch.net/en/instruments/conventions/status-table/notifications/?cid17> (select Republic of Korea under column marked Res/D/N/DC). I last accessed this document on May 29, 2025.

9. Attached as Exhibit G is a true and correct copy of an information sheet promulgated by the Korean government which outlines the details of proper service in Korea. The document may be found at <https://www.hcch.net/en/states/authorities/details3/?aid=262>. I last accessed this document on May 29, 2025.

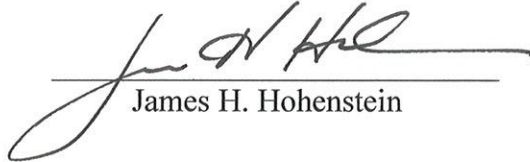
of America, the Republic of Korea (“Korea”) and the Republic of Singapore (“Singapore”). See <https://www.hcch.net/en/about> (last accessed on May 30, 2025).

10. Attached as Exhibit H is a true and correct copy of the official Declaration/Reservation/Notification of Singapore in which Singapore objects to service of documents by postal channels directly to persons within its territory. The document may be found at <https://www.hcch.net/en/instruments/conventions/status-table/notifications/?cid17> (select Singapore under column marked Res/D/N/DC). I last accessed this document on May 29, 2025.

11. Attached as Exhibit I is a true and correct copy of an information sheet promulgated by the Singaporean government which outlines the details of proper service in Singapore. The document may be found at <https://www.hcch.net/en/states/authorities/details3/?aid=1200>. I last accessed this document on May 29, 2025.

I declare under penalty of perjury of the laws of the United States of America that the foregoing is true and correct to the best of my knowledge and belief.

Dated: June 6, 2025


James H. Hohenstein

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit A



FEDERAL MARITIME COMMISSION

OFFICE OF THE SECRETARY
800 North Capitol Street, N.W.
Washington, DC 20573-0001

Phone: (202) 523-5725
Email: secretary@FMC.gov

May 14, 2025

Samsung Electronics Logitech Company, Limited
401 Shin-dong
Youngtong-gu, Suwon, Kyonggi-do
Republic of Korea

Via FedEx - Tracking No.: 881222299224

Re: Docket No. 24-16 Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd. v. Samsung Electronics Company, Ltd.; Samsung SDS Global SCL Asia Pacific Pte. Ltd.; and Samsung Electronics Logitech Company, Limited

Dear Sir/Madam:

Enclosed is a copy of a third-party complaint filed in Docket No. 24-16 in which Samsung Electronics Logitech Company, Limited has been named Third-Party Respondent. An answer to the third-party complaint must be filed with the Commission and served upon the other parties to the proceeding within twenty-five (25) days of the date of service stamped on the third-party complaint in accordance with the Commission's Rules of Practice and Procedure. Third-Party Respondent must notify the Commission of the name, address, telephone number, and email address for each person who will represent Third-Party Respondent in the proceeding. If a person is appearing in a representative capacity, a Notice of Appearance must be filed in accordance with the Rules of Practice and Procedure at 46 C.F.R. § 502.23. These rules and other resources can be found at <https://www.fmc.gov/proceedings/>.

The Commission has temporarily waived certain requirements in 46 C.F.R. part 502 related to paper filing of documents, ink signatures, and service by mail. Please see the Commission's Order on our website at www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf.

Also enclosed is a copy of the Notice of Filing of Third-Party Complaint that will be published in the Federal Register as required by 46 C.F.R. § 502.61.

Sincerely,

David Eng
Secretary

Enclosures

Cc: Office of Administrative Law Judges

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit B



FEDERAL MARITIME COMMISSION

OFFICE OF THE SECRETARY
800 North Capitol Street, N.W.
Washington, DC 20573-0001

Phone: (202) 523-5725
Email: secretary@FMC.gov

May 14, 2025

Samsung SDS Global SCL Asia Pacific Pte. Ltd.
#07-32 Mapletree Business City
30 Pasir Panjang Road
Singapore 117440, Singapore

Via FedEx - Tracking No.: 881221330630

Re: Docket No. 24-16 Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd. v. Samsung Electronics Company, Ltd.; Samsung SDS Global SCL Asia Pacific Pte. Ltd.; and Samsung Electronics Logitech Company, Limited

Dear Sir/Madam:

Enclosed is a copy of a third-party complaint filed in Docket No. 24-16 in which Samsung SDS Global SCL Asia Pacific Pte. Ltd. has been named a Third-Party Respondent. An answer to the third-party complaint must be filed with the Commission and served upon the other parties to the proceeding within twenty-five (25) days of the date of service stamped on the third-party complaint in accordance with the Commission's Rules of Practice and Procedure. Third-Party Respondent must notify the Commission of the name, address, telephone number, and email address for each person who will represent Third-Party Respondent in the proceeding. If a person is appearing in a representative capacity, a Notice of Appearance must be filed in accordance with the Rules of Practice and Procedure at 46 C.F.R. § 502.23. These rules and other resources can be found at <https://www.fmc.gov/proceedings/>.

The Commission has temporarily waived certain requirements in 46 C.F.R. part 502 related to paper filing of documents, ink signatures, and service by mail. Please see the Commission's Order on our website at www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf.

Also enclosed is a copy of the Notice of Filing of Third-Party Complaint that will be published in the Federal Register as required by 46 C.F.R. § 502.61.

Sincerely,

David Eng
Secretary

Enclosures

Cc: Office of Administrative Law Judges

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit C

14. CONVENTION ON THE SERVICE ABROAD OF JUDICIAL AND EXTRAJUDICIAL DOCUMENTS IN CIVIL OR COMMERCIAL MATTERS¹

(Concluded 15 November 1965)

The States signatory to the present Convention,
Desiring to create appropriate means to ensure that judicial and extrajudicial documents to be served abroad shall be brought to the notice of the addressee in sufficient time,
Desiring to improve the organisation of mutual judicial assistance for that purpose by simplifying and expediting the procedure,
Have resolved to conclude a Convention to this effect and have agreed upon the following provisions:

Article 1

The present Convention shall apply in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad.
This Convention shall not apply where the address of the person to be served with the document is not known.

CHAPTER I – JUDICIAL DOCUMENTS

Article 2

Each Contracting State shall designate a Central Authority which will undertake to receive requests for service coming from other Contracting States and to proceed in conformity with the provisions of Articles 3 to 6.
Each State shall organise the Central Authority in conformity with its own law.

Article 3

The authority or judicial officer competent under the law of the State in which the documents originate shall forward to the Central Authority of the State addressed a request conforming to the model annexed to the present Convention, without any requirement of legalisation or other equivalent formality.
The document to be served or a copy thereof shall be annexed to the request. The request and the document shall both be furnished in duplicate.

Article 4

If the Central Authority considers that the request does not comply with the provisions of the present Convention it shall promptly inform the applicant and specify its objections to the request.

¹ This Convention, including related materials, is accessible on the website of the Hague Conference on Private International Law (www.hcch.net), under "Conventions" or under the "Service Section". For the full history of the Convention, see Hague Conference on Private International Law, *Actes et documents de la Dixième session* (1964), Tome III, *Notification* (391 pp.).

Article 5

The Central Authority of the State addressed shall itself serve the document or shall arrange to have it served by an appropriate agency, either –

- a) by a method prescribed by its internal law for the service of documents in domestic actions upon persons who are within its territory, or
- b) by a particular method requested by the applicant, unless such a method is incompatible with the law of the State addressed.

Subject to sub-paragraph (b) of the first paragraph of this Article, the document may always be served by delivery to an addressee who accepts it voluntarily.

If the document is to be served under the first paragraph above, the Central Authority may require the document to be written in, or translated into, the official language or one of the official languages of the State addressed.

That part of the request, in the form attached to the present Convention, which contains a summary of the document to be served, shall be served with the document.

Article 6

The Central Authority of the State addressed or any authority which it may have designated for that purpose, shall complete a certificate in the form of the model annexed to the present Convention.

The certificate shall state that the document has been served and shall include the method, the place and the date of service and the person to whom the document was delivered. If the document has not been served, the certificate shall set out the reasons which have prevented service.

The applicant may require that a certificate not completed by a Central Authority or by a judicial authority shall be countersigned by one of these authorities.

The certificate shall be forwarded directly to the applicant.

Article 7

The standard terms in the model annexed to the present Convention shall in all cases be written either in French or in English. They may also be written in the official language, or in one of the official languages, of the State in which the documents originate.

The corresponding blanks shall be completed either in the language of the State addressed or in French or in English.

Article 8

Each Contracting State shall be free to effect service of judicial documents upon persons abroad, without application of any compulsion, directly through its diplomatic or consular agents.

Any State may declare that it is opposed to such service within its territory, unless the document is to be served upon a national of the State in which the documents originate.

Article 9

Each Contracting State shall be free, in addition, to use consular channels to forward documents, for the purpose of service, to those authorities of another Contracting State which are designated by the latter for this purpose.

Each Contracting State may, if exceptional circumstances so require, use diplomatic channels for the same purpose.

Article 10

Provided the State of destination does not object, the present Convention shall not interfere with –

- a) the freedom to send judicial documents, by postal channels, directly to persons abroad,

- b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination,
- c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.

Article 11

The present Convention shall not prevent two or more Contracting States from agreeing to permit, for the purpose of service of judicial documents, channels of transmission other than those provided for in the preceding Articles and, in particular, direct communication between their respective authorities.

Article 12

The service of judicial documents coming from a Contracting State shall not give rise to any payment or reimbursement of taxes or costs for the services rendered by the State addressed.

The applicant shall pay or reimburse the costs occasioned by —

- a) the employment of a judicial officer or of a person competent under the law of the State of destination,
- b) the use of a particular method of service.

Article 13

Where a request for service complies with the terms of the present Convention, the State addressed may refuse to comply therewith only if it deems that compliance would infringe its sovereignty or security. It may not refuse to comply solely on the ground that, under its internal law, it claims exclusive jurisdiction over the subject-matter of the action or that its internal law would not permit the action upon which the application is based.

The Central Authority shall, in case of refusal, promptly inform the applicant and state the reasons for the refusal.

Article 14

Difficulties which may arise in connection with the transmission of judicial documents for service shall be settled through diplomatic channels.

Article 15

Where a writ of summons or an equivalent document had to be transmitted abroad for the purpose of service, under the provisions of the present Convention, and the defendant has not appeared, judgment shall not be given until it is established that —

- a) the document was served by a method prescribed by the internal law of the State addressed for the service of documents in domestic actions upon persons who are within its territory, or
- b) the document was actually delivered to the defendant or to his residence by another method provided for by this Convention, and that in either of these cases the service or the delivery was effected in sufficient time to enable the defendant to defend.

Each Contracting State shall be free to declare that the judge, notwithstanding the provisions of the first paragraph of this Article, may give judgment even if no certificate of service or delivery has been received, if all the following conditions are fulfilled —

- a) the document was transmitted by one of the methods provided for in this Convention,
- b) a period of time of not less than six months, considered adequate by the judge in the particular case, has elapsed since the date of the transmission of the document,
- c) no certificate of any kind has been received, even though every reasonable effort has been made to obtain it through the competent authorities of the State addressed.

Notwithstanding the provisions of the preceding paragraphs the judge may order, in case of urgency, any provisional or protective measures.

Article 16

When a writ of summons or an equivalent document had to be transmitted abroad for the purpose of service, under the provisions of the present Convention, and a judgment has been entered against a defendant who has not appeared, the judge shall have the power to relieve the defendant from the effects of the expiration of the time for appeal from the judgment if the following conditions are fulfilled –

- a) the defendant, without any fault on his part, did not have knowledge of the document in sufficient time to defend, or knowledge of the judgment in sufficient time to appeal, and
- b) the defendant has disclosed a *prima facie* defence to the action on the merits.

An application for relief may be filed only within a reasonable time after the defendant has knowledge of the judgment.

Each Contracting State may declare that the application will not be entertained if it is filed after the expiration of a time to be stated in the declaration, but which shall in no case be less than one year following the date of the judgment.

This Article shall not apply to judgments concerning status or capacity of persons.

CHAPTER II – EXTRAJUDICIAL DOCUMENTS

Article 17

Extrajudicial documents emanating from authorities and judicial officers of a Contracting State may be transmitted for the purpose of service in another Contracting State by the methods and under the provisions of the present Convention.

CHAPTER III – GENERAL CLAUSES

Article 18

Each Contracting State may designate other authorities in addition to the Central Authority and shall determine the extent of their competence.

The applicant shall, however, in all cases, have the right to address a request directly to the Central Authority.

Federal States shall be free to designate more than one Central Authority.

Article 19

To the extent that the internal law of a Contracting State permits methods of transmission, other than those provided for in the preceding Articles, of documents coming from abroad, for service within its territory, the present Convention shall not affect such provisions.

Article 20

The present Convention shall not prevent an agreement between any two or more Contracting States to dispense with –

- a) the necessity for duplicate copies of transmitted documents as required by the second paragraph of Article 3,
- b) the language requirements of the third paragraph of Article 5 and Article 7,
- c) the provisions of the fourth paragraph of Article 5,
- d) the provisions of the second paragraph of Article 12.

Article 21

Each Contracting State shall, at the time of the deposit of its instrument of ratification or accession, or at a later date, inform the Ministry of Foreign Affairs of the Netherlands of the following –

- a) the designation of authorities, pursuant to Articles 2 and 18,
- b) the designation of the authority competent to complete the certificate pursuant to Article 6,
- c) the designation of the authority competent to receive documents transmitted by consular channels, pursuant to Article 9.

Each Contracting State shall similarly inform the Ministry, where appropriate, of –

- a) opposition to the use of methods of transmission pursuant to Articles 8 and 10,
- b) declarations pursuant to the second paragraph of Article 15 and the third paragraph of Article 16,
- c) all modifications of the above designations, oppositions and declarations.

Article 22

Where Parties to the present Convention are also Parties to one or both of the Conventions on civil procedure signed at The Hague on 17th July 1905, and on 1st March 1954, this Convention shall replace as between them Articles 1 to 7 of the earlier Conventions.

Article 23

The present Convention shall not affect the application of Article 23 of the Convention on civil procedure signed at The Hague on 17th July 1905, or of Article 24 of the Convention on civil procedure signed at The Hague on 1st March 1954.

These Articles shall, however, apply only if methods of communication, identical to those provided for in these Conventions, are used.

Article 24

Supplementary agreements between Parties to the Conventions of 1905 and 1954 shall be considered as equally applicable to the present Convention, unless the Parties have otherwise agreed.

Article 25

Without prejudice to the provisions of Articles 22 and 24, the present Convention shall not derogate from Conventions containing provisions on the matters governed by this Convention to which the Contracting States are, or shall become, Parties.

Article 26

The present Convention shall be open for signature by the States represented at the Tenth Session of the Hague Conference on Private International Law.

It shall be ratified, and the instruments of ratification shall be deposited with the Ministry of Foreign Affairs of the Netherlands.

Article 27

The present Convention shall enter into force on the sixtieth day after the deposit of the third instrument of ratification referred to in the second paragraph of Article 26.

The Convention shall enter into force for each signatory State which ratifies subsequently on the sixtieth day after the deposit of its instrument of ratification.

Article 28

Any State not represented at the Tenth Session of the Hague Conference on Private International Law may accede to the present Convention after it has entered into force in accordance with the first paragraph of Article 27. The instrument of accession shall be deposited with the Ministry of Foreign Affairs of the Netherlands.

The Convention shall enter into force for such a State in the absence of any objection from a State, which has ratified the Convention before such deposit, notified to the Ministry of Foreign Affairs of the Netherlands within a period of six months after the date on which the said Ministry has notified it of such accession.

In the absence of any such objection, the Convention shall enter into force for the acceding State on the first day of the month following the expiration of the last of the periods referred to in the preceding paragraph.

Article 29

Any State may, at the time of signature, ratification or accession, declare that the present Convention shall extend to all the territories for the international relations of which it is responsible, or to one or more of them. Such a declaration shall take effect on the date of entry into force of the Convention for the State concerned.

At any time thereafter, such extensions shall be notified to the Ministry of Foreign Affairs of the Netherlands.

The Convention shall enter into force for the territories mentioned in such an extension on the sixtieth day after the notification referred to in the preceding paragraph.

Article 30

The present Convention shall remain in force for five years from the date of its entry into force in accordance with the first paragraph of Article 27, even for States which have ratified it or acceded to it subsequently.

If there has been no denunciation, it shall be renewed tacitly every five years.

Any denunciation shall be notified to the Ministry of Foreign Affairs of the Netherlands at least six months before the end of the five year period.

It may be limited to certain of the territories to which the Convention applies.

The denunciation shall have effect only as regards the State which has notified it. The Convention shall remain in force for the other Contracting States.

Article 31

The Ministry of Foreign Affairs of the Netherlands shall give notice to the States referred to in Article 26, and to the States which have acceded in accordance with Article 28, of the following –

- a) the signatures and ratifications referred to in Article 26;
- b) the date on which the present Convention enters into force in accordance with the first paragraph of Article 27;
- c) the accessions referred to in Article 28 and the dates on which they take effect;
- d) the extensions referred to in Article 29 and the dates on which they take effect;
- e) the designations, oppositions and declarations referred to in Article 21;
- f) the denunciations referred to in the third paragraph of Article 30.

In witness whereof the undersigned, being duly authorised thereto, have signed the present Convention.

Done at The Hague, on the 15th day of November, 1965, in the English and French languages, both texts being equally authentic, in a single copy which shall be deposited in the archives of the Government of the Netherlands, and of which a certified copy shall be sent, through the diplomatic channel, to each of the States represented at the Tenth Session of the Hague Conference on Private International Law.

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit D

Singapore Accedes to the Service Convention

17 MAY 2023

17 May 2023 Posted in [Press releases](#)



1. Singapore on 16 May deposited its instrument of accession to the Hague Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters ("**Service Convention**"), making us a Contracting Party to the Service Convention. The accession will facilitate and streamline the process for service of court and related documents in civil and commercial matters overseas. This provides greater legal



certainty in cross-border litigation, which enhances business confidence, including for companies operating overseas, and reduces costs and delays for Singapore litigants.

2. With the deposit of the instrument yesterday with the Ministry of Foreign Affairs of the Netherlands, the Service Convention will enter into force on 1 December 2023 for Singapore. Singapore will implement the obligations under the Service Convention through amendments to the Rules of Court 2021, the Singapore International Commercial Court Rules 2021, and the Family Justice Rules, which will be implemented at the same time when the Service Convention enters into force for Singapore.
3. The Ministry of Law will be designated as Singapore's Central Authority under the Service Convention.

Background

4. The service of court and related documents is a key step in legal proceedings as it establishes the authority of a court to hear a matter.

5. As a Contracting Party to the Service Convention, Singapore will be able to leverage on a harmonised set of rules for the service of judicial and extrajudicial documents abroad, including in many of Singapore's major trading partners.
6. As the channels of transmission are internationally recognised, this would go towards ensuring that Singapore legal proceedings are not challenged or stayed due to invalid service, and the Singapore judgment that is subsequently issued may be recognised or enforced outside Singapore. This would, in turn, provide greater legal certainty for Singapore litigants to enforce their rights in foreign jurisdictions more efficiently and effectively.
7. Further details on the implementation of the Service Convention in Singapore will be announced in due course.

MINISTRY OF LAW

17 MAY 2023

Last updated on 17 May 2023

Ministry of Law

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Last Updated 25 May 2025

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit E

DETAILS

Singapore accedes to the Service Convention

may
16
2023



Today, 16 May 2023, the Republic of Singapore deposited its instrument of accession to the *Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters* (1965 Service Convention).

With the accession of Singapore, the 1965 Service Convention now has 81 Contracting Parties. It will enter into force for Singapore on 1 December 2023 subject to the Article 28 procedure. More information on this Convention is available on the **Service Section** of the HCCH website.

At the ceremony, which was held at the premises of the Permanent Bureau in The Hague, Singapore was represented by H.E. Mr Lim Hong Huai, Ambassador of the Republic of Singapore to the Kingdom of the Netherlands,

and Ms Davinia Aziz, Minister-Counsellor of the Republic of Singapore. The Ministry of Foreign Affairs of the Netherlands, depositary of the HCCH Conventions, was represented by Mr Rieks Boekholt, Legal Officer at the Treaties Division, while the Permanent Bureau of the HCCH was represented by Dr Christophe Bernasconi, Secretary General and Dr Gérardine Goh Escolar, Deputy Secretary General.

Singapore has been a Member of the HCCH since 2014 and is now a Contracting Party to **five HCCH Conventions**.

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conv14 Singapore

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit F

DECLARATION/RESERVATION/NOTIFICATION

Declarations

Reservations

Articles: 8,10,15

(Click here for the Central Authority designated by the Republic of Korea and other practical information)

Text of the declarations:

1. Pursuant to Article 8, the Republic of Korea objects to service of judicial documents directly through diplomatic or consular agents upon persons in its territory, unless the document is to be served upon a national of the State in which the documents originate.
 2. Pursuant to Article 10, the Republic of Korea objects to the following:
 - a) the freedom to send judicial documents, by postal channels, directly to persons abroad,
 - b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officials or other competent persons of the State of destination.
 - c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.
 3. Pursuant to Article 15, paragraph 2, the judge of the Republic of Korea may give judgment even if no certificate of service or delivery has been received if all the following conditions are fulfilled:
 - a) the document was transmitted by one of the methods provided for in this Convention,
 - b) a period of time of not less than six months, considered adequate by the judge in the particular case, has elapsed since the date of the transmission of the document,
 - c) no certificate of any kind has been received, even though every reasonable effort has been made to obtain it through the competent authorities of the State addressed.
-

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit G

Republic of Korea - Central Authority & practical information

Central Authority:

*Director of International Affairs
National Court Administration
Supreme Court of Korea*

Contact details:

Address: National Court Administration
Attn.: Director of International Affairs
Seocho-daero 219
Seocho-gu
SEOUL 06590
Republic of Korea

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General website: <https://eng.scourt.go.kr/eng/main/Main.work>

Contact person: Director of International Affairs

Languages spoken by staff: Korean (by phone), English (by email/fax/in writing)

Practical Information:

Forwarding authorities
(Art. 3(1)): The court in which the proceedings were initiated.

Methods of service
(Art. 5(1)(2)): In principle, a competent court, as an appropriate agency, serves the document by registered mail (recorded delivery) or an execution officer serves the documents as prescribed by the Korean Supreme Court Regulations.
Where the translated document is not attached, or the applicant requests so, the competent court may serve by informal method pursuant to Article 5(1)(b).
Relevant laws: *Civil Procedure Act* (applicable with Contracting States to the Service Convention), *Act on International Judicial Mutual Assistance in Civil Matters* (applicable with non-Contracting States to the Service Convention).

Translation requirements
(Art. 5(3)): In case where the document is served under Article 5(1), translation into the official language (Korean) should be attached.

Costs relating to execution of the request for service
(Art. 12):

1. When an execution officer serves the documents pursuant to Article 5(1).
2. The use of a particular method of service, pursuant to Article 5(2).

Time for execution of request:

The following data is in accordance with the recent survey conducted by the National Court of Administration.

In 2012, the Central Authority received 604 requests for service. Of these:

- 200 were executed in less than 2 months
- 240 were executed in 2-4 months
- 99 were executed in 4-6 months
- 21 were executed in 6-12 months
- 8 were executed in more than 12 months
- 4 are currently pending

In 2014, 435 requests were received. Of these:

- 259 were executed in less than 2 months
- 73 were executed in 2-4 months
- 18 were executed in 4-6 months
- 22 executed in 6-12 months
- 0 were executed in more than 12 months
- 63 are currently pending

In 2018, 955 requests were received. Of these:

- 661 were executed in less than 3 months
- 64 were executed in 3-6 months
- 14 were executed in 6-12 months
- 6 were executed in more than 12 months
- 210 are currently pending

Judicial officers, officials or other competent persons
(Art. 10(b))

Oppositions and declarations
(Art. 21(2)):

[Click here to read all the declarations made by this State under the Service Convention.](#)

Art. 8(2):

Opposition

Art. 10(a):

Opposition

Art. 10(b):

Opposition

Art. 10(c):

Opposition

Art. 15(2):

Declaration of applicability

Art. 16(3):

No declaration

Derogatory channels (bilateral or multilateral agreements or internal law permitting other transmission channels)
(Arts. 11, 19, 24 and 25)

Disclaimer:

Information may not be complete or fully updated – please contact the relevant authorities to verify this information.

Useful links:

1. Domestic regulation
Act on International Judicial Mutual Assistance in Civil Matters (in particular Chapter 2 and 3)
2. Bilateral Agreements on judicial assistance in civil and commercial matters: Australia (17 September 1999); People's Republic of China (7 July 2003); Uzbekistan (23 November 2004); Mongolia (15 October 2008).

Civil Procedure Act and Civil Procedure Rules (Part I, Chapter IV, Section 4).

Available at: <http://www.law.go.kr/main.html>

An English translation is available at: <http://elaw.klri.re.kr/>

Competent authorities
(Arts 6, 9)

See here.

Other authorities
(Art. 18)

This page was last updated on: 19 January 2022

Conventions (incl. Protocols and Principles)

Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters [14]

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit H

DECLARATION/RESERVATION/NOTIFICATION

Declarations

Articles: 8, 10

Declarations:

16-05-2023

1. In accordance with Article 8, paragraph 2 of the Convention, the Republic of Singapore declares that it is opposed to the direct service of judicial documents upon persons within its territory through foreign diplomatic or consular agents, unless the documents are to be served upon a national of the State from which the documents originate.
2. The Republic of Singapore declares that it objects to the service of judicial and extrajudicial documents within its territory by the methods of transmission set out in Article 10 of the Convention.

Third-Party Respondents' Motion to Dismiss

Docket No. 24-16

Hohenstein Declaration

Exhibit I

AUTHORITY

Singapore - Central Authority & practical information

Central Authority:

Ministry of Law

Contact details:

Address:	100 High Street #08-02 The Treasury Singapore 179434 Republic of Singapore
Telephone:	1800 2255 529 (For local calls within Singapore. Airtime charges may apply to calls made from mobile phones to '1800' local toll-free numbers) +65 62255 529 (For international calls outside Singapore)
Fax:	-
E-mail:	MLAW_Intl_Legal@mlaw.gov.sg
General website:	www.mlaw.gov.sg
Contact person:	-
Languages spoken by staff:	English

Practical Information:

Forwarding authorities (Art. 3(1)):	Registrar of the Supreme Court of Singapore
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Methods of service
(Art. 5(1)(2)):

A request under Article 3 of the Convention must be sent to the Ministry of Law of Singapore, together with the following documents:

- (a) The document to be served;
- (b) A summary of the document to be served, in accordance with Part 3 of the Model Form; and
- (c) An English translation of the documents mentioned in (a) and (b), if they are not in English.

The above documents may be sent to the Ministry of Law of Singapore in one of the following ways:

(1) **Via e-mail** [a] to the Ministry of Law's e-mail address (see above), as long as one physical set of the request and documents referred to in (a), (b) and (c) above is also received by the Ministry of Law. Any request sent via e-mail will not be capable of execution unless one physical set of the documents is also received.

If e-mail is used, the certificate of service / non-service under Article 6 of the Convention will be sent to the forwarding authority via e-mail.

[a] The Ministry of Law of Singapore requests forwarding authorities to consider utilising this method of service in the event requests under Article 3 of the Convention: (i) involve voluminous documents (i.e., more than 300 pages in total); or (ii) are sent in bulk (i.e., more than 5 requests to be sent at one go). Applicants may consider using cloud storage services (e.g., Google Drive, Dropbox, OneDrive) to upload their documents and share a secure link for submission.

(2) **Via physical delivery** to the Ministry of Law's address (see above). The requisite hard copy documents must be in duplicate. Forwarding authorities are encouraged to provide their working e-mail address when submitting the request, in the event the Ministry of Law of Singapore is required to get in touch to seek clarifications and/or additional information.

Subject to any written law which provides for the manner in which documents may be served on a body corporate [b], service of the document will be effected by a process server —

- (a) By leaving the document, and a copy of the translation of the document, with the person to be served;
- (b) By a method of service authorised by the Rules of Court 2021 for the service of analogous documents issued by the Court; or
- (c) By a particular method requested by the applicant, unless the method is inconsistent with any law for the time being in force in Singapore.

(See Order 64, Rule 4A, and Order 7, Rules 2 and 3 of the Rules of Court 2021.)

[b]Please note that we will not be able to effect service on a company that has been wound up / dissolved, and no longer exists.

Translation requirements (Art. 5(3)):	The request for service sent under Article 3 of the Convention to the Central Authority of Singapore should be in English. An English translation of (a) the document to be served and (b) the summary of the document to be served (i.e., Part 3 of the Model Form) is required, if they are not in English. (See Order 64, Rule 4A(4)(c) of the Rules of Court 2021).
Costs relating to execution of the request for service (Art. 12):	The costs occasioned by the employment of a process server for service of judicial and extrajudicial documents are reimbursable to Singapore pursuant to Article 12(2) of the Convention. <i>For judicial documents</i> For the service of judicial documents under Article 5 of the Convention, a sum of \$100 (Singapore dollars) in respect of each address for service must be paid for purposes of paying the costs occasioned by the employment of a process server. (See Order 64, Rule 4A(4)(e) of the Rules of Court 2021). Payment shall be made: (i) By way of a bank draft in the sum of \$100 (Singapore dollars) made payable to "Registrar, Supreme Court/AG" which is to be provided at the same time the request is made; <u>or</u> (ii) By way of a bank transfer. Details of how to effect such bank transfer will be provided upon the receipt of the request and all relevant documents. The applicant is to state clearly that they wish to make payment by way of bank transfer, when making the request for service. The costs relating to the execution of the request for service under the available alternative channels of transmission are as prescribed under domestic legislation. Please note that service will be effected only after full payment is received. <i>For extrajudicial documents</i> Service of extrajudicial documents is undertaken via a service provider. The Ministry of Law will collect payment on behalf of the service provider for the service provider's costs of effecting service of extrajudicial documents. Details of how to effect payment will be provided upon receipt of the request and all relevant documents.
Time for execution of request:	The Convention came into force for Singapore on 1 December 2023. We will monitor execution times and provide further information in due course.
Judicial officers, officials or other competent persons (Art. 10(b))	Not applicable.

Oppositions and declarations (Art. 21(2)):	Click here to read all the declarations made by this State under the Service Convention.
Art. 8(2):	Not applicable, unless the documents are to be served upon a national of the State from which the documents originate.
Art. 10(a):	Not applicable.
Art. 10(b):	Not applicable.
Art. 10(c):	Not applicable.
Art. 15(2):	No declarations.
Art. 16(3):	No declarations.
Derogatory channels (bilateral or multilateral agreements or internal law permitting other transmission channels) (Arts. 11, 19, 24 and 25) Disclaimer: <i>Information may not be complete or fully updated – please contact the relevant authorities to verify this information.</i>	Where both the Service Convention and another civil procedure convention are applicable, the relevant party may elect to use either convention. The Republic of Singapore is Party to the following civil procedure conventions: (a) Convention between the United Kingdom and Austria regarding legal proceedings in civil and commercial matters (b) Convention between the United Kingdom and Italy regarding legal proceedings in civil and commercial matters (c) Convention between the United Kingdom and Germany regarding legal proceedings in civil and commercial matters (d) Treaty on Judicial Assistance in civil and commercial matters between the Republic of Singapore and the People's Republic of China

Useful links:	Amendments were made to the Rules of Court 2021, the Singapore International Commercial Court Rules 2021, and the Family Justice Rules 2014, to implement Singapore's obligations under the Service Convention. These subsidiary legislation may be accessed at this link. An announcement published by the Ministry of Law of Singapore on 24 November 2023 may be accessed at this link. The announcement provides, among others, a summary of the options for service of Singapore documents out of Singapore, and for service of foreign documents in Singapore, where the Service Convention applies. <u>Requests for service on bodies corporate in Singapore:</u> To minimise delays with the processing of incoming requests for service on bodies corporate in Singapore, applicants are encouraged to conduct a search of the company's name and registered address(es) via the website of Singapore's Accounting and Corporate Regulatory Authority (ACRA) at this link to ensure the accuracy of these details. Such searches on ACRA's website can be adequately conducted at no cost.
Competent authorities (Arts 6, 9)	The certificate of service / non-service under Article 6 of the Convention will be completed by: (a) In the case of service of judicial documents – the Registrar of the Supreme Court of Singapore; (b) In the case of service of extrajudicial documents – the Ministry of Law of Singapore.
Other authorities (Art. 18)	N.A.

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Conventions (incl. Protocols and Principles)

Convention of 15 November 1965 on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters [14]